

24 March 2023
Housekeeping

Friday, 24 March 2023
(10.30 am)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: Yes, Mr Myers.

MR MYERS: May it please you, my Lord.

The issue that had caused initially some concern to the defence, as your Lordship knows, related to a PowerPoint presentation by Dr Marnerides which identifies sites of injury to [Baby O] and to [Baby P], and it's linked to the issue about the cause of that injury in the liver and the question about whether CPR or vigorous CPR can be a cause of this.

Initially, the defence had some concerns as to the inevitably graphic nature of that evidence, but taking the opportunity to reflect on where we are with that evidence and the issues as they have emerged in the course of cross-examination, in particular, and bearing in mind the way the prosecution would seek to present this and then the inevitability of the questions we would ask, on reflection it certainly seems to us clear that there would be no realistic basis to object to evidence that goes to an issue that is plainly of some significance.

Even were the prosecution not to adduce it or not be allowed to adduce it, where we will go in cross-examination, almost inevitably, would bring it up whatever I was to say at this point and therefore, not wishing to pursue an objection that we don't regard as being sufficiently powerful to raise with the court, we don't.

I should say, if that creates or has created inconvenience, I apologise for that, but it's something we had thought we would pursue, but on reflection we don't.

There is still this morning the position of the additional pathologists to confirm. We are close to that, from what I see, from my involvement with it, which means that within, we hope, a relatively short compass of time we can confirm with your Lordship the requirement for a jury, or probably not, on Monday.

We're continuing to work with the interviews. It is conceivable if in the coming hours a matter arises with which your Lordship could assist, we may call upon your Lordship. It's also quite

possible that that work is going to go on and any issue may arise later. I don't know, I'm not directly involved in that.

But it seems to me, subject to what Mr Johnson says, that certainly within the next few hours, we will be able to determine if there's anything else to deal with today and also determine the position of the jury, but we may not require any longer that.

MR JUSTICE GOSS: So far as my personal situation is concerned, I have no difficulty whatsoever. I shall be here for the length of the full court day --

MR MYERS: Very well, thank you.

MR JUSTICE GOSS: -- so that won't cause any inconvenience, but of course we must let the jury know before 4 o'clock about Monday.

MR MYERS: I anticipate we'll be able to do that before lunchtime, my Lord.

MR JUSTICE GOSS: Well, any time as long as it's -- that's the deadline, 4 o'clock.

MR MYERS: We should be able to meet that. That's the position at the moment and that's where we get to on the material we're dealing with.

MR JUSTICE GOSS: That's very helpful. Thank you very much.

Mr Johnson, is there anything you wish to add?

MR JOHNSON: No, thank you.

MR JUSTICE GOSS: Thank you very much indeed.

Right, obviously the defendant should remain here unless and until you say she is no longer required by you --

MR MYERS: Yes, my Lord.

MR JUSTICE GOSS: -- or therefore by the court.

MR MYERS: I'm grateful for that. Thank you.

MR JUSTICE GOSS: If you could keep her here, please. Will someone be going down to see her?

MR MYERS: Yes, very shortly.

MR JUSTICE GOSS: Someone will be coming down to speak to her very shortly, if you could accommodate, please.

Thank you very much.

That ends the proceedings in this case. I just have a matter -- a piece of information I will seek from Mr Johnson. I see there's a representative of the media here. Please stay.

That book, of which you and I have a copy, but mine isn't available to me, that was written by His Honour Robert Taylor --

(Video feed muted by the court)

(10.34 am)

(Adjournment)

(12.48 am)

(The court adjourned until 10.30 am on Tuesday, 28 March 2023)